



CHAPTER 54

An Act to amend the law as to the circumstances in which, for the purposes of proceedings for divorce in England or Scotland, a person is to be treated as having been continuously under care and treatment and as to the effect of insanity on desertion; and to enable a petition for divorce to be presented on the ground of desertion notwithstanding any separation agreement entered into before desertion became a ground for divorce in English law. [23rd July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Notwithstanding anything in subsection (2) of section one of the Matrimonial Causes Act, 1950, or subsection (3) of section six of the Divorce (Scotland) Act, 1938, a person shall be deemed to be under care and treatment for the purposes of the said section one, and under care and treatment as an insane person for the purposes of the said section six, at any time when he is receiving treatment for mental illness—

Care and treatment for purposes of divorce proceedings.
14 Geo. 6. c. 25.
1 & 2 Geo. 6. c. 50.

- (a) as a resident in a hospital or other institution provided, approved, licensed, registered or exempted from registration by any Minister or other authority in the United Kingdom, the Isle of Man or the Channel Islands; or
- (b) as a resident in a hospital or other institution in any other country, being a hospital or institution in which his treatment is comparable with the treatment provided in any such hospital or institution as is mentioned in paragraph (a) of this subsection.

(2) For the purposes of the foregoing subsection a certificate by the Admiralty or a Secretary of State that a person was receiving treatment for mental illness during any period as a resident in any naval, military or air-force hospital under the direction of the Admiralty, the Army Council or the Air Council shall be conclusive evidence of the facts certified.

(3) In determining for the purposes of the said section one or the said section six whether any period of care and treatment has been continuous, any interruption of such a period for twenty-eight days or less shall be disregarded.

Power of court to treat desertion as continuing during period of incapacity.

2. For the purposes of any petition or action for divorce or judicial separation the court may treat a period of desertion as having continued at a time when the deserting party was incapable of continuing the necessary intention, if the evidence before the court is such that, had he not been so incapable, the court would have inferred that that intention continued at that time.

Divorce for desertion notwithstanding separation agreement.

3. For the purposes of paragraph (b) of subsection (1) of section one of the Matrimonial Causes Act, 1950 (which provides that a petition for divorce may be presented to the High Court on the ground that the respondent has deserted the petitioner without cause for a period of at least three years immediately preceding the presentation of the petition), any agreement between the petitioner and the respondent to live separate and apart, whether or not made in writing, shall be disregarded if the agreement was entered into before the first day of January, nineteen hundred and thirty-eight, and either—

- (a) at the time when the agreement was made the respondent had deserted the petitioner without cause; or
- (b) the court is satisfied that the circumstances in which the agreement was made and the parties proceeded to live separate and apart were such as, but for the agreement, to amount to desertion of the petitioner by the respondent without cause.

Short title, extent and repeal.

4.—(1) This Act may be cited as the Divorce (Insanity and Desertion) Act, 1958.

(2) This Act does not extend to Northern Ireland.

(3) In paragraph (d) of subsection (2) of section one of the Matrimonial Causes Act, 1950, the words from “being treatment” to “this subsection”, and in subsection (3) of section six of the Divorce (Scotland) Act, 1938, the words “other than treatment as a voluntary patient” are hereby repealed.

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